Directive Principles of State Policy (DPSP)

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Introduction

✓ **Part IV of the Constitution → Articles 36 to 51**

✓ **Borrowed idea from Irish Constitution of 1937**

✓ Dr. B.R. Ambedkar described as **'novel features'** of the Indian Constitution

✓ Philosophy and soul of the Constitution

✓ **Guarantee basic freedoms and protection** to citizens.

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Director,

Department of Employment and Training.

Features of Directive Principles of State Policy (DPSPs):

- **Constitutional Guidelines:**
  - DPSPs are **instructions or recommendations** to the State (Article 36 defines "State" same as for Fundamental Rights).
- **Inspired by 1935 Act:**
  - Based on the **Instrument of Instructions** in the Government of India Act, 1935.
- **Goal of Economic and Social Democracy:**
  - Aim to promote a just society with **equitable distribution** of wealth, resources, and opportunities.
- **Welfare State Ideal:**
  - Reflect the idea of a **welfare state** (not a police state).
- **Non-Justiciable:**
  - **Not enforceable** by any court if violated.
- **Article 37:**
  - Though non-justiciable, they are **fundamental in governance** and it is the **duty of the State** to apply them.
- **Role in Judicial Review:**
  - Courts may **consider DPSPs** to determine the **constitutional validity** of a law.
- **Relation with Fundamental Rights:**

Laws influenced by DPSPs must maintain a **reasonable balance with Article 14 (Equality)** and **Article 19 (Freedoms).**

Classification of DPSPs

1.Socialistic Principles:

Aim to promote **social and economic equality**.

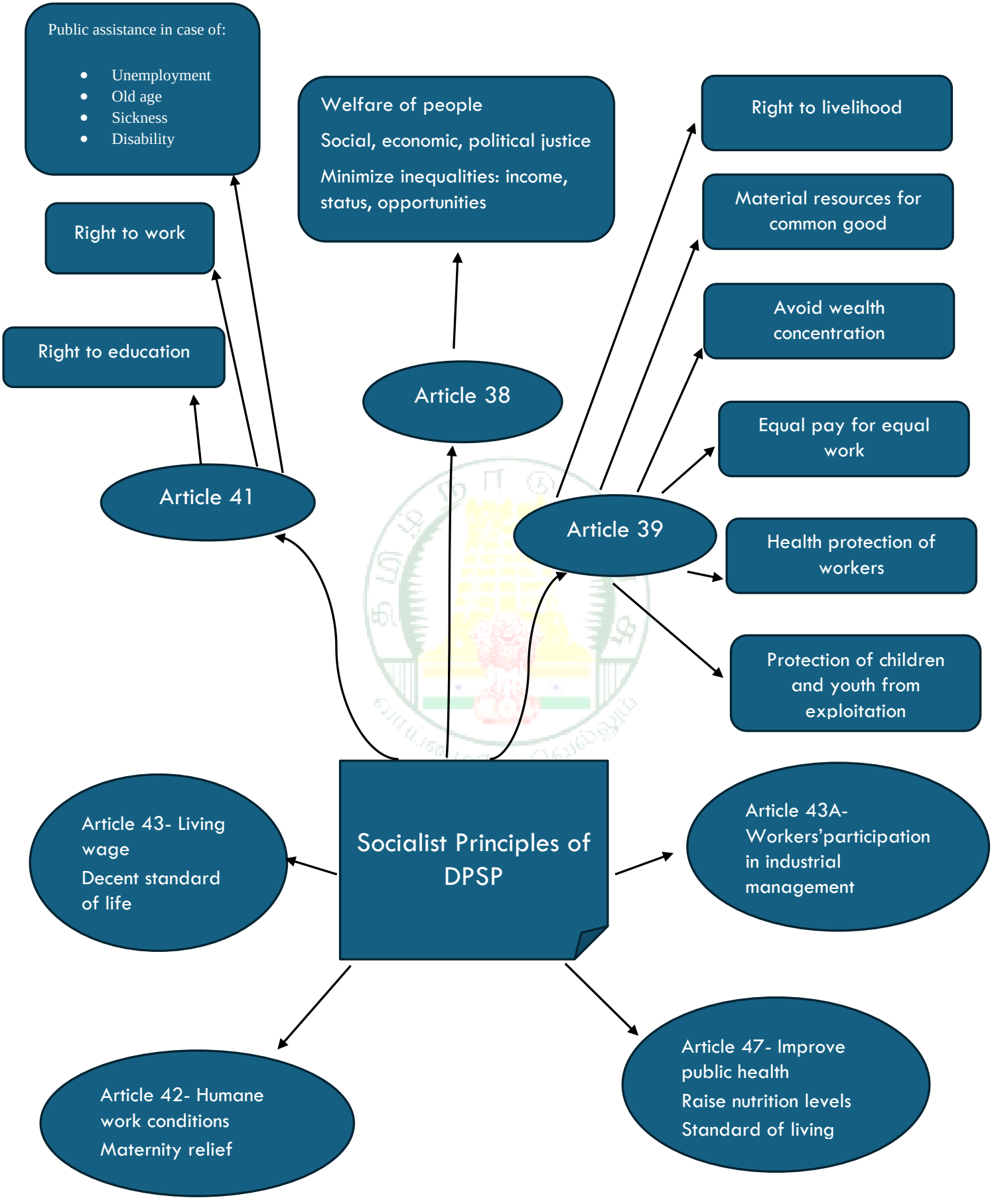
2.Gandhian Principles:

Reflect Gandhi's ideals such as **village panchayats**, promotion of **cottage industries**, **prohibition**, protection of **SCs, STs**, and promotion of **Khadi**

3.Liberal-Intellectual Principles:

Focus on **individual liberty**, **freedom of conscience**, **uniform civil code**, **international peace**, and **environmental protection**.

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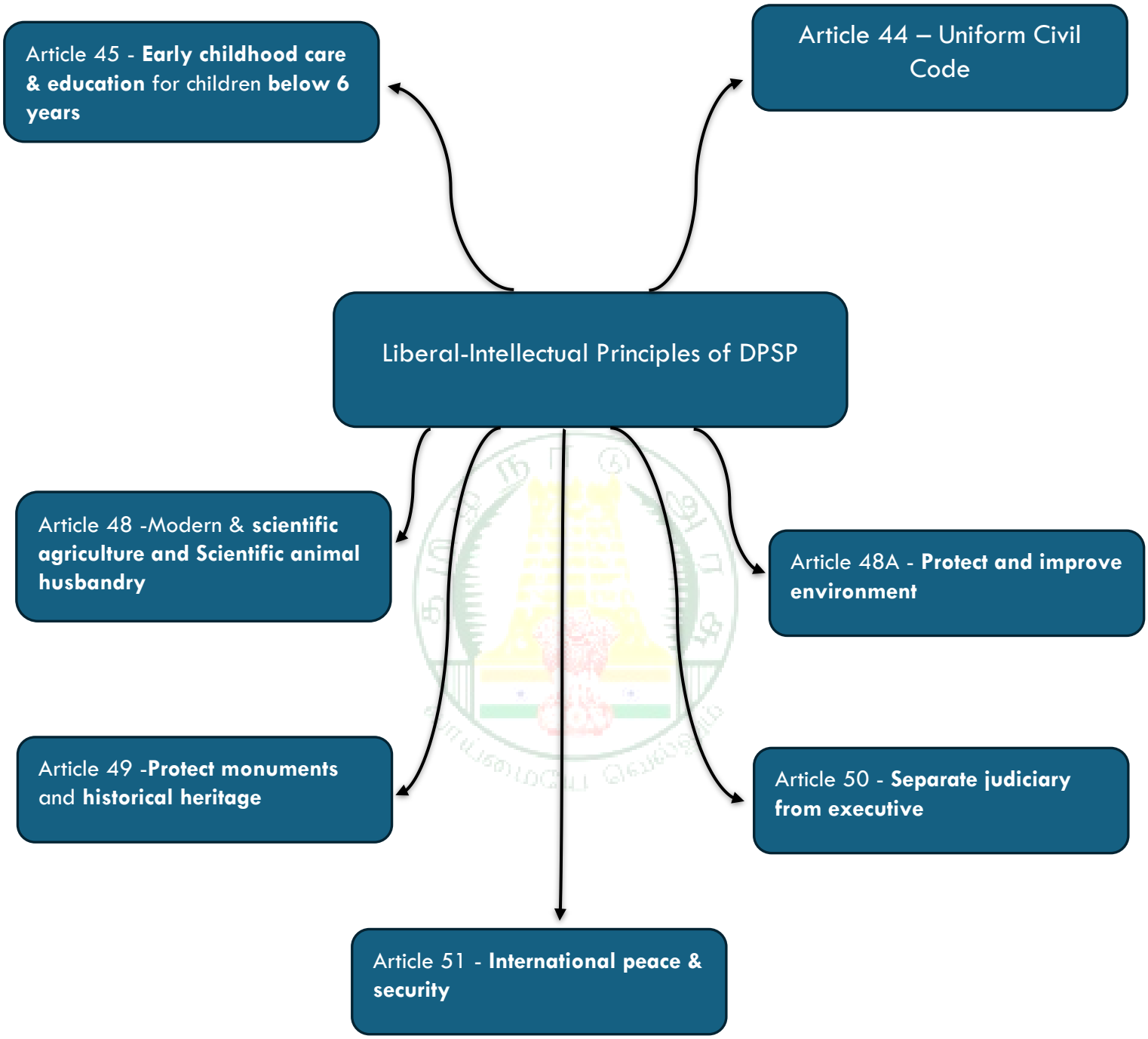
Gandhian Principles of DPSP

- Article 40- Organize **village panchayats**
- Article43- to **promote cottage industries** on an individual or cooperative basis in rural areas.
- Article 43B - To promote voluntary formation, autonomous functioning, democratic control and professional management of cooperative societies.
- Article 46 - Promote **educational & economic interests** of **SCs**, **STs**, and **weaker sections**
- Article 47 - Improve **public health** and **Prohibit** intoxicating drinks & drugs harmful to health
- Article 48 -To **prohibit the slaughter of cows, calves and other milch** and draught cattle and to improve their breeds.

Amendments in DPSP:

- **42nd Constitutional Amendment, 1976**: It introduced certain changes in the part-IV of the Constitution by adding new directives:
  - **Article 39A:** To provide **free legal aid** to the poor.
  - **Article 43A:** Participation of workers in management of Industries.K1M
  - **Article 48A:** To protect and improve the environment.

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FUNDAMENTAL RIGHTS	DIRECTIVE PRINCIPLES OF STATE POLICY
• **Derived from** the **U.S. Constitution.** • Legally **enforceable by courts** and have **legal sanctions.** • **Even the Government cannot take away or abridge** these rights. • Aim to ensure **political democracy** in the country.	• **Drawn from** the **Irish Constitution.** • **Not enforceable by any court** and have **moral and political sanctions.** • Serve as **guidelines/instructions to the Government.** • Aim to establish **social and economic democracy.**

Implementation of DPSP

- **Land & Labour Reforms:** Abolition of zamindars, land ceiling, tenancy reforms, and acts like Minimum Wages Act (1948), Code on Wages (2020), and Child Labour laws support rural and labour welfare.
- **Women Welfare:** Laws like the Maternity Benefit Act (1961) and Equal Remuneration Act (1976) promote gender equity in the workforce.
- **Panchayati Raj:** The 73rd Amendment Act (1992) implemented Article 40 by establishing a three-tier Panchayati Raj system.
- **Cottage Industries:** Boards like KVIC and Silk Board were set up under Article 43 to promote village and cottage industries.
- **Education:** Article 45 was fulfilled through the 86th Amendment and the Right to Education Act, 2009 for free, compulsory education (ages 6–14).
- **Rural, Health, Environment & Heritage:** MGNREGA (2006), PMGSY, NRHM, Wildlife Act (1972), Environment Act (1986), and Heritage Acts protect livelihoods, nature, and culture.